

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.179	0.179	0.022	0.294	0.126
Trial Fee-Shifting	0.163	0.163	0.032	0.293	0.097
Complete Fee-Shifting	0.163	0.163	0.032	0.293	0.097

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.181	0.171	0.005	0.335	0.033
Trial Fee-Shifting	0.158	0.152	0.010	0.298	0.031
Complete Fee-Shifting	0.158	0.152	0.010	0.298	0.031